*BY ORDER OF THE COMMANDER*
*HILL AIR FORCE BASE*

*HILL AIR FORCE BASE INSTRUCTION*
*51-200*

*6 NOVEMBER 2019*
*Certified Current, 14 April 2026*
*Law*

*SERVICE OF LEGAL PROCESS*

**COMPLIANCE WITH THIS PUBLICATION IS MANDATORY**

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**RELEASABILITY:** There are no releasability restrictions on this publication

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OPR: 75 ABW/JAC

Certified by: 75 ABW/JA
(Lance Thaxton)

Supersedes: HILLAFBI51-1001, 7 October 2015

Pages: 6

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This instruction implements AFPD 51-2, *Military Justice, Individual Military Counsel, and Other Criminal Proceedings,* and AFPD 51-3, *Civil Law, Acquisition Law, and Litigation.* This instruction outlines procedures to be followed in effecting service of legal process at Hill AFB, the Utah Test and Training Range (UTTR), Little Mountain and Carter Creek, Utah, to maximize the effectiveness and efficiency of such service and to minimize disruption to the orderly accomplishment of the Air Force mission. It sets forth the authority, policy, and procedures for service of civil and criminal process upon and restraint of any individual, including, but not exclusively, military personnel and their dependents, civilian employees, and contractor personnel at Hill AFB, the UTTR, Little Mountain, and Carter Creek, Utah. Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using the AF Form 847, *Recommendation for Change of Publication*; route AF Forms 847 from the field through the appropriate functional chain of command. The authorities to waive wing/unit level requirements in this publication are identified with a Tier ("T-0, T-1, T-2, T-3") number following the compliance statement. See AFI 33-360, *Publications and Forms Management*, Table 1.1 for a description of the authorities associated with the Tier numbers. Submit requests for waivers through the chain of command to the appropriate Tier waiver approval authority, or alternately, to the Publication OPR for non-tiered compliance items. Ensure that all records created as a result of processes prescribed in this publication are maintained in accordance with (IAW) Air Force Manual (AFMAN) 33-363, *Management of Records*, and disposed of IAW Air Force Records Disposition Schedule (RDS) located in the Air Force Records Information Management System (AFRIMS).

*SUMMARY OF CHANGES*

This publication has been revised to update references to match the current Air Force Instructions and Policy Directives.

**1. Authority, Jurisdiction and Service of Process.**

1.1. The United States Air Force has exclusive jurisdiction on the realty upon which Hill AFB is located with the exception of the West Side (Falcon Hill) Development, Base Golf Course, Family Housing Areas "D" and "E", Tract 121, the Sunset Housing Area and the Accident Potential Zone (APZ) on the south end of the runway. The Air Force has concurrent jurisdiction on the West Side Development, Base Golf Course, Family Housing Areas "D" and "E", Tract 121, the Sunset Housing Area and the UTTR. Little Mountain, Carter Creek and the APZ on the south end of the runway are under proprietary jurisdiction. See **Attachment 2**, Hill AFB Jurisdiction Map.

1.2. The 75 Security Forces Squadron (SFS) and Air Force Office of Special Investigation personnel shall monitor process service, service of arrest warrants, property seizures, repossessions and attachments.

**2. Procedures.**

2.1. The 75 SFS sentries or other persons first encountering a process server who intends to serve an official court order, warrant, subpoena, supplemental court order, writ, or other legal document (not to include arrest warrants) will review the credentials granting power to serve such process before allowing the process server to enter the base (T-3).

2.2. If the process server is a civilian law enforcement agent (federal, state, county, or city,) government-issued law enforcement credentials will suffice to enter the base. The civilian law enforcement agent should report to the Civil Law Division (75 ABW/JAC, Building 1278) to present the documents for legal review. 75 ABW/JA will indicate its approval by marking the documents with the date, time, and name of the reviewing party (T-3).

2.3. All other process servers must report to the South Gate Visitor's Center. From that location, 75 ABW/JAC will be contacted (Primary 777-6755 or Alternate 777-7455) and arrange to fax, or otherwise deliver the documents for legal review (FAX 777-7459) (T-3). If the documents are in order, 75 ABW/JA will mark the documents as having been reviewed. The documents will then be provided to server or faxed back to the South Gate Visitor's Center, 586-1551 (T-3). The South Gate Visitor's Center will contact 75 SFS Emergency Control Center (ECC), 777-3056, and request that a patrolman respond to the South Gate Visitor's Center (T-3). Security Forces will sponsor and escort the server to subject's location (T-3). Process servers without law enforcement credentials will not be allowed unescorted access to the installation (T-3).

2.4. A 75 ABW/JA paralegal or attorney will review all legal documents to be served for legal sufficiency. Approval will be granted if the document (T-3).

2.4.1. Is issued by an appropriate federal or state court, or is issued in connection with a legal matter properly before a federal or state court.

2.4.2. Is signed by a proper authority.

2.4.3. Will be served within the statutory time period.

2.5. The 75 SFS will then determine the location of the individual being served, the individual's organization, and the identity of the individual's supervisor or First Sergeant.

2.6. The 75 SFS will take the following actions with respect to individuals being served:

2.6.1. Civilian Federal Employees and Civilian Contractor Employees: Contact the individual's supervisor or First Sergeant and request that the supervisor or First Sergeant to privately inform the individual of the proposed service of process and of the individual's option to voluntarily meet with the process server at the South Gate Visitor's Center or have the process server appear at the work place. If the individual refuses or fails to report to the South Gate Visitors Center, 75 SFS will escort the process server to the individual's job location (T-3). Security forces personnel escorting process servers are precluded from assisting in the actual service of process, other than helping to locate the individual being served. Service of process will be made under circumstances providing the maximum amount of privacy practicable (T-3).

2.6.2. Military Dependents and Non-employee Civilians (to include sponsored civilians) under 14 years of age for Utah process and under 18 years of age for federal process: Contact the minor's sponsor (in sponsor's absence, the minor's parent or guardian) and request that the minor be brought to the South Gate Visitor's Center for service, along with a parent, guardian, or person charged with the care and custody of the minor. If the minor refuses or fails to report, then 75 SFS will detail a security forces person to escort the process server to the minor's residence or other known location on base (T-3).

2.6.3. Military Dependents and Non-employee Civilians, 14 years of age or older for Utah process or 18 years of age or older for federal process: Contact the individual directly and request he/she present himself/herself for service at the South Gate Visitors Center. If the individual refuses or fails to report, then 75 SFS will detail a security forces person to escort the process server to the individual's residence or other known location on base (T-3).

2.6.4. Members of the United States Armed Forces: Contact the individual's immediate supervisor or unit First Sergeant and ask him/her to request that the individual report to the South Gate Visitors Center. If the individual refuses or fails to do so, then 75 SFS will detail a security forces person to escort the process server to the individual's place of duty, on-base residence, or other known location on base (T-3).

2.6.5. In all cases, if the process server is unable to make contact with the subject, the 75 SFS ECC will work with the process server to arrange for a return visit on the same calendar day without requiring a return visit to the Civil Law Division for legal review. Return visits on any other calendar day or the introduction of any new documents will require the process server to repeat the steps outlined in previous paragraphs of this instruction. (T-3).

2.7. In those cases where both a service member and spouse are to be served, and they reside together on base, and service of process can be accomplished upon both by service upon either person at their residence; then, after the requisite approval has been obtained, a security forces person will be detailed to escort the process server to the person's residence (T-3).

2.8. In-state and out-of-state service of process issued by a federal court or a court of a state is authorized on Hill AFB, the UTTR, Little Mountain and Carter Creek, Utah if made in accordance with this publication.

**3. Voluntary Acceptance of Out-of-State Service of Process.** Arrangements may be made for off-base voluntary acceptance of out-of-state service of process.

**4. Arrests.** When a federal, state, and local authority seeks to arrest a military member, dependent, or DoD civilian employee, follow the guidance and procedures set forth in AFI 51-205, *Delivery of Personnel to the United States Civilian Authorities for Trial and Criminal Jurisdiction Over Civilians and Dependents Overseas* (T-3).

**5. Seizure, Repossession, Attachment, etc., on Hill AFB, the UTTR, Little Mountain and Carter Creek, Utah.** No property whatsoever within the confines of the above-named installations will be seized, repossessed, attached or otherwise executed upon without the express consent of the owner of such property or upon the presentation of process authorizing the same issued by a state or a federal court (T-3).

5.1. Advance consent to seize, repossess, or attach, given by the creditor in the contract of sale, promissory note, installment sales contract, or other financing instrument or contractual document, is not express consent within the meaning of this publication.

5.2. Persons desiring to seize, repossess, or attach property on Hill AFB, the UTTR, Little Mountain and Carter Creek, Utah will follow the procedures for service of process in **paragraph 2** (T-3).

**6. Garnishment or Wage Assignments.** All documents pertaining to garnishments or wage assignments of Air Force personnel will be sent directly by the process server to the Defense Finance and Accounting Service (DFAS) (T-3). DFAS processes all court-ordered garnishments for military members and civilian employees. Garnishments for Non-Appropriated Fund Instrumentalities and contract employees will be sent to their appropriate agent designated to accept service of legal process pertaining to garnishment or wage assignment (T-3). Current DFAS information and addresses are available on the internet at **http://www.dfas.mil/garnishment.html**.

JON A. EBERLAN, Colonel, USAF
Commander

**Attachment 1**

**GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION**

***References***

AFPD 51-2, *Military Justice, Individual Military Counsel, and Other Criminal Proceedings, 31 August 2018*

AFPD 51-3, *Civil Law, Acquisition Law, and Litigation,* 28 November 2018

AFI 51-205, *Delivery of Personnel to United States Civilian Authorities for Trial and Criminal Jurisdiction Over Civilians and Dependents Overseas,* 10 September 2018

***Abbreviations and Acronyms***

**APZ**—Accident Potential Zone

**75SFS** – Security Forces Squadron

**DFAS** – Defense Finance and Accounting Service

**75ABW/JA** – Office of the Staff Judge Advocate

**ECC**—Emergency Control Center

**NAFI**—Non-appropriated Fund Instrumentalities

**UTTR** – Utah Test and Training Range

***Terms***

**Express Consent**—Actual, informed, and current consent given after the decision to seize, repossess, or attach has been made, and given after the seizer, repossessor, or attacher requests permission from the owner (registered owner in the case of motor vehicles) of the property to be seized, repossessed, or attached.

## Attachment 2

## JURISDICTION MAP

**Figure A2.1. Jurisdiction Map.**

